

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 10, 2026
8:30 a.m./1:30 p.m.

13. JOSLYNN MATHERS V. NICHOLAS PALLESCHI

26FL0658

Petitioner filed an ex parte application for emergency custody orders on July 17, 2026. Respondent filed a Responsive Declaration on July 20th. On July 20, 2026, the court denied the ex parte request and referred the parties to an emergency set Child Custody Recommending Counseling (CCRC) appointment on August 11, 2026, and a review hearing on September 10, 2026. Petitioner filed a Request for Order on July 20, 2026, mirroring the requests made in the ex parte application. Upon review of the court file, there is no Proof of Service showing Respondent was properly served.

Nevertheless, both parties appeared at the CCRC appointment and were able to make some agreements. A report with the parties' agreements and further recommendations was prepared on August 26, 2026. Copies were mailed to the parties on August 27th.

Petitioner filed a Reply Declaration to the CCRC report on September 1, 2026. It was served on Respondent the same day. Petitioner points out the CCRC report is inconsistent between the body of the report and the recommendations regarding the parenting plan. Petitioner also asserts the recommendation that Respondent have sole physical custody is incongruent with the parenting plan outlined in the body of the report. Petitioner is seeking an order for joint legal custody. Petitioner requests Respondent's parenting time be consistent with Respondent's work schedule. Petitioner requests Respondent's parenting time be alternating weekends as well as a Tuesday evening dinner weekly.

The court has read and considered the filings as outlined above. The court finds the agreements of the parties as set forth in the August 26th CCRC report to be in the best interest of the minor. The court is not adopting the recommendation as to parenting time. The parties are to share joint physical custody. Respondent shall have parenting time every other week on Thursday at 7:00 PM until Sunday at 9:00 AM. Respondent shall have parenting time with the minor every Tuesday from 5:00 PM until 9:00 PM. The court is adopting the remainder of the recommendations as set forth, as they are in the best interest of the minor.

All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

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TENTATIVE RULING #13: THE COURT FINDS THE AGREEMENTS OF THE PARTIES AS SET FORTH IN THE AUGUST 26TH CCRC REPORT TO BE IN THE BEST INTEREST OF THE MINOR. THE COURT IS NOT ADOPTING THE RECOMMENDATION AS TO PARENTING TIME. THE PARTIES ARE TO SHARE JOINT PHYSICAL CUSTODY. RESPONDENT SHALL HAVE PARENTING TIME EVERY OTHER WEEK ON THURSDAY AT 7:00 PM UNTIL SUNDAY AT 9:00 AM. RESPONDENT SHALL HAVE PARENTING TIME WITH THE MINOR EVERY TUESDAY FROM 5:00 PM UNTIL 9:00 PM. THE COURT IS ADOPTING THE REMAINDER OF THE RECOMMENDATIONS AS SET FORTH, AS THEY ARE IN THE BEST INTEREST OF THE MINOR.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

ANY REQUEST FOR ORAL ARGUMENT WILL BE HEARD AT 8:30 AM IN DEPARTMENT 5.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.